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Jeepney Modernization Program: Agencies and Constraints of Informal Transport Sector in Cebu City, Philippines

Katrina Lerma A. Rapada

College of Social Sciences, University of the Philippines, Cebu, Gorordo Avenue, Lohng, Cebu City 6000, Philippines

Herald Shalom R. Vallente

College of Social Sciences, University of the Philippines, Cebu, Gorordo Avenue, Lohng, Cebu City 6000, Philippines

Giena Marie U. Canoy

College of Social Sciences, University of the Philippines, Cebu, Gorordo Avenue, Lohng, Cebu City 6000, Philippines

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Abstract

In the quest to provide a better public transportation system in the Philippines, the government has implemented Department Order 2017-011, the major basis for the Public Utility Vehicle Modernization Program, which requires single jeepney operators to join transport cooperatives and limits jeepneys not older than 15 years to operate. However, up to the present, this policy initiative has yet to improve Cebu City's public transport system significantly, and it has already created various forms of exclusion. Anchored on Mayer's (2014) theory on the problems of collective action and Mosca's (1939) elite theory, this study assesses the collective agencies of jeepney drivers and operators in Cebu City and the constraints of such agencies in negotiating and shaping policy enforcement of the jeepney modernization program. This study utilizes a qualitative case study design incorporating secondary data with face-to-face interviews and focus group discussions. It illustrates that the combination of the informality of the jeepney transport sector in the country, the prevailing fragmentation within the sector - including divergent views and interests between traditional jeepney drivers and operators and their heterogeneities, and the discordant stances among different transport groups toward implementation vis-a-vis private sector-led groups - constitute as critical factors in constraining the agency of affected stakeholders in their attempts at resistance and collective negotiation actions. It argues that the agency of drivers and operators is effectively overwhelmed by such a lack of coherence and consistent deliberative approaches among its representatives in their negotiations with state institutions, which are bent on advancing neoliberal solutions to urban transport systems. This poses severe implications for what should have been a just transition for the grassroots sector in promoting sustainability.

Keywords: Jeepney modernization program, informal transport sector, collective agency

Introduction

Drawbacks of the Philippines' traditional jeepneys (i.e., air pollution, lack of maintenance systems, and outdated and unsafe design) resulted in the formulation and implementation of the Public Utility Vehicle Modernization Program (PUVMP) (Mendoza, 2023). According to Agaton et al. (2019), jeepneys produce 94% of the soot particle mass and emit 2000 times greater than Europe's Euro 6 standard for diesel engines. The PUVMP's primary purpose is

to “provide Filipinos with a transport system that is safe, reliable, convenient, and environmentally sustainable” by making the Philippine public transportation system aligned with the global standard (Viado, 2023; Agaton et al., 2020).

The Jeepney Modernization Program, part of the PUVMP, started in 2017 during the administration of former president Rodrigo Duterte. The Department Order 2017-011, or the Omnibus Guidelines on the Planning and Identification of Public Road Transportation Services and Franchise Issuance, serves as the PUVMP’s core policy (Mantaring, 2023). The PUVMP aims to consolidate and unify the fragmented industry as well as phase out jeepneys over 15 years old to comply with environmental and safety standards (Canada, 2023). At the same time, single jeepney operators must join existing transport cooperatives or form a new one with at least 15 members and consolidate their units to continue their operations.

PUVMP puts financial strain on the jeepney drivers and operators as their participation in the modernization warrants them to pay the amount of ₱300,000 to form a cooperative and ₱20,000 for every driver (Chanco, 2023) as a filing fee and membership/capital build-up fee, respectively. A modern jeepney costs ₱1.4 million to ₱3 million, and to help the drivers, the LTFRB increased the subsidy from ₱160,000 to ₱260,000 (Bautista & Moya, 2023). However, even with government subsidies, drivers and operators cannot afford their purchase while considering both the access and future costs of maintaining modernized units.

In Cebu City, while modernization is ongoing, the COVID-19 pandemic exacerbated the decline of the number of traditional jeepneys; thus, it is insufficient to meet the demands of the commuting public (Letigio, 2021). According to LTFRB Region VII, there are only 3,415 traditional jeepneys and 637 modern jeepneys in 2023, in contrast to the pre-pandemic, which is 5,000 to 6,000 (Sitchon, 2022). Moreover, apprehensions due to overloading of jeepneys during rush hours, as reported by the Cebu City Transportation Office (CCTO), averaging 16 per day in early December 2023, proves the lack of jeepney units despite the presence of modernized jeepneys.

Compounded with fuel and other expenses, there is almost nothing left for the jeepney drivers to feed their families. According to Guerrero (1971), the semi-proletariat, including the jeepney drivers, are exploited in exchange for a measly wage. This is supported by a study by the World Bank (2017) that public transport in Metro Manila is primarily provided by a combination of low-level-of-service, unsafely operated Public Utility Buses (PUBs) and Public Utility

Jeepneys (PUJs or minibusses). This program affects the sector's main stakeholders, particularly the jeepney drivers and operators, who are at risk of falling into a debt trap. Thus, numerous transport strikes and protests took place in various places, prompting the government agency to postpone its deadlines from 2020, 2021, 2022, and now to the end of 2023. However, the transport strikes were only able to postpone the full implementation of the program but did not provide adequate aid necessary to help the stakeholders.

While various transport groups support modernization, they expressed the inability of many small-scale operators and drivers to meet government standards on time. The Piston Land Transport Coalition, in their document calling for a worker-led, pro-people just transition, regarded the jeepney phaseout as a “false solution” to protecting employment and livelihoods while addressing the climate crisis (Kusuma, 2023). A study by Gatarin (2023) revealed that civil society organizations and jeepney groups criticized the program by stating that it is anti-poor and profit-oriented, calling on the government for reform towards service to the people rather than on big businesses. The National Democratic Front–Black people, particularly, perceive the program as a monopolization of the transport sector implemented by the US–Marcos II regime for large firms or global financial institutions—the Asian Development Bank (ADB) and World Bank (WB) (Obrera, 2024).

Despite the relevance of the issue, studies focus on the challenges faced by traditional jeepney drivers and critiques regarding the Jeepney Modernization Program and implicitly depict the agencies of traditional jeepney drivers and operators.

A study by Muñoz-Raskin et al. (2015) and Sunio et al. (2019) highlighted the negative impacts of an informal, fragmented, and uncoordinated transport sector on the capacity of the drivers and operators to influence the program's implementation. It reflects that traditional jeepney drivers and operators, despite having agencies manifested in the form of resistance, are constrained by their informality, fragmentation, and lack of coordination in the transport sector.

This study examines how the collective agencies of traditional jeepney drivers and operators in Cebu City influence jeepney modernization and how they have been shaped by the interplay of structures and institutions and the constraints thereof. It investigates how the interplay of structures and institutions shapes their capability when influencing program decisions.

Methodology

Research Design and Methodology

This study utilized a qualitative case study approach and was conducted within Cebu City, Philippines, which is an ideal location given that it is the regional center of Central Visayas and is a part of one of the three defined metropolitan areas of the Philippines – Metro Cebu; and is a city with a population of 964,169 based on the 2020 census (Philippine Statistics Authority 2021). The city also has one of the most densely populated downtown areas in the country, with daily traffic flow in major intersections ranging from around 38,500 to 46,700 passenger car units (PCU), according to the CCTO. Furthermore, with 3,415 traditional jeepneys plying its roads (according to the latest figures provided by LTFRB Regional Office VII in 2023), Cebu City accounts for almost 1 out of 10 of the 42,600 jeepney units operating in the Philippines, as recorded by Statista (2023) in 2021.

Frameworks for Analysis

Theoretical Framework

This paper centered on the argument that the heterogeneous interests, compounded by the government's exclusive decision-/policymaking of the traditional jeepney drivers and operators, constrain their collective agencies in influencing the Jeepney Modernization Program. In addition, the agencies of traditional jeepney drivers have become limited due to the interplay of structures and institutions they face in the sector. This study is guided by the assertions of Mayer (2014) and Mosca (1939).

Frederick Mayer (2014), in his paper *The Problems of Collective Action*, posited that there are many impediments to collective action, two of which are the aspects of coordination and assurance. Thus, according to him, coordinating collective action is far more difficult with heterogeneous than with homogenous interests. Further, Gaetano Mosca's (1939) elite theory in his book *The Ruling Class* emphasizes that in every society, there exists a ruling class that "performs all political functions, monopolizes power, and enjoys the advantages the power brings." As such, this class solely creates policies and decides over political affairs. Mosca's argument implies that the public (or the 'ruled class') is excluded in the decision-making/policymaking process because a small group of powerful individuals manages public affairs, to which the majority of the ruled willingly or unwillingly defer. However, to a certain degree, the ruled

class is still subject to the pressures arising from the discontent of the masses who are governed, from the passions by which they are swayed.

Conceptual Framework

This study employs the ASID framework that is adopted from Moulaert et al. (2016), where the four tightly linked concepts provide a methodology to analyze socio-economic development in space, considering actions that steer or interfere with the development processes, the structures that both constrain and enable action, the institutions that guide or hamper action and mediate the relation between structures and action, and the discourses and discursive practices that are part of these interactions. However, this study only focused on the agency, structure, and institution, excluding discourse. The diagram of the proposal shows the dynamics of agency and the constraints brought through structural and institutional facets and their interplay. The diagram further demonstrates that agencies influence the manifestation of structural and institutional constraints and their interplay, which in turn affects the actions and, thus, the agencies.

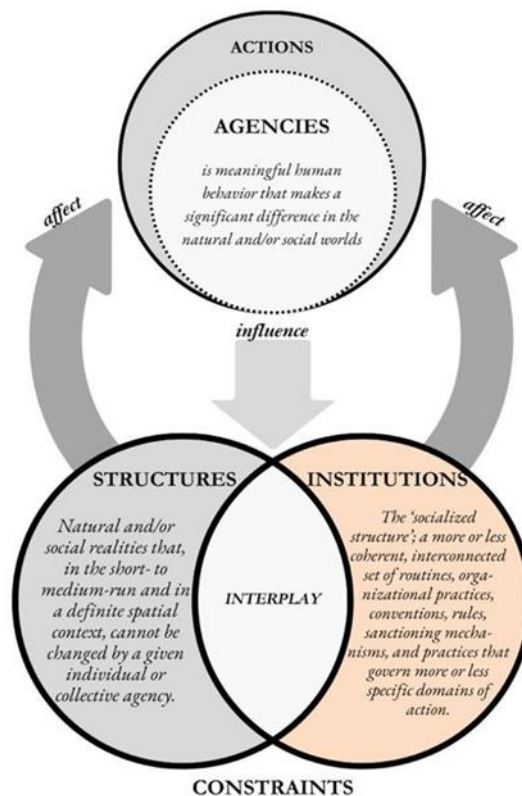


Figure 1. Schema diagram of the study.

Operational Framework

This study employed a modified Agency, Structure, Institutions, and Discourse (ASID) framework and thematic analysis adapted from Braun and Clarke (2006).

Table 1

Indicators of the Informal Transport Sector

Indicators of the Informal Transport Sector
Monetary and Employment Informality
1. Working hours 2. Payment/earning conditions 3. Contract between drivers and operators 4. Social benefits

Table 2

Types of Constraints to Agencies of Stakeholders in the Informal Transport Sector Based on the ASI Framework

Types of Constraints to Agencies of Stakeholders <i>(Traditional Jeepney Drivers and Operators) in the Informal Transport Sector</i>	
Structural	Institutional
Natural and/or social realities that cannot be changed by a given individual or collective agency in the short- to medium-run and in a definite spatial context.	The ‘socialized structure’ is a coherent, interconnected set of routines, organizational practices, conventions, rules, sanctioning mechanisms, and practices that govern more or less specific domains of action.
• Fragmentation due to heterogeneous interests • Monetary and employment informality	• Exclusive government decision - /policy- making

Discussion

Collective Agencies

The study shows that the manifestation of the agencies of drivers and operators vis-a-vis the Jeepney Modernization Program is not merely limited to participation in transport strikes and protests but also in their ability to use their membership in transport groups to reduce violation penalties. This is apparent in their participation in transport groups wherein they benefit from the group's small-scale financial aid during emergencies, processing franchises and licenses, and reduced cost of penalties, among others. Moreover, workshops conducted by transport groups provide beneficial information, empowering their members. Further, petitions to the government are carried out, albeit with varied results. These agencies obtained from joining transport groups proved to be extremely helpful to jeepney drivers and operators as through their groups, they were able to consolidate their power and promote their advocacies in relation to the implementation of the program. Nonetheless, the interplay of structures and institutions has a significant impact on the agencies of both traditional jeepney drivers and operators.

Structural Constraints

Structural constraints that include the informality and fragmentation of the transport sector alongside the heterogeneous interests of traditional jeepney drivers and operators limit their capability to influence the implementation of the Jeepney Modernization Program in Cebu City. Informalities on the financial and employment aspects of their work manifested in their varied work hours, income, lack of formal contracts and social benefits, and the imbalance of power between them, their operators, and the government, proved to have significant limiting effects on the agency of jeepney drivers in relation to the Jeepney Modernization Program.

Fragmentation is bred by the heterogeneity between traditional jeepney drivers, operators, and even chapters within a particular transport group. This is due to stakeholders having varied interests vis-a-vis the jeepney modernization program, such that numerous jeepney drivers oppose the PUVMP. Yet, a considerable number of jeepney operators promote the program, especially those with the necessary capital. Unfortunately, while some support their drivers, many operators still prohibit them from participating in collective action. Moreover, fragmentation exists even among those who resist the program due to differences in motives since some aim to cease the program

while others simply aspire for its postponement. The same circumstance applies to the respective groups of traditional jeepney drivers and operators. This predicament is exacerbated by the fact that some drivers and operators prioritize their self-interests rather than collective interests. However, several traditional jeepney drivers were forced to become inactive in the endeavor since they either had to work to sustain their families' daily necessities or to pay the daily rental dues (*boundary*) to their respective operators.

Additionally, transport groups are uniform in their counter-proposal initiatives towards the government's modernization program. While many are focused on short-term alleviation of the drivers' and operators' problems, the transport group also puts forward long-term counter proposals. However, these short-term (i.e., *five-year extension of the franchise, providing support and assistance to drivers and operators, suspensions of late filing fees, etc.*) and long-term (i.e., *the inclusion of the stakeholders in all bills program proposals, stimulate local PUV industries, etc.*) counter proposals are only mainly corroborated by respondents who are members of transport groups, suggesting that non-member stakeholders are unfamiliar with these counter-proposals. Despite the transport groups' counter-proposals, many factors contribute not just to the fragmentation of the stakeholders themselves but also to the gap of ideas that the primary stakeholders possess, which results in discord and further fragmentation within the informal transport sector. Consequently, fragmentation hinders solidarity, reducing the strong influence the transport group holds should it encompass a greater number of traditional jeepney drivers and operators. This is a major obstacle in building a cohesive and coordinated organization with a higher degree of negotiating power.

The situation in Cebu City presents a reality that heterogeneity in the informal transport sector is not as linear as the notion of conflict of interest between the government and affluent transport companies and traditional jeepney drivers, operators, and their transport groups. Additionally, conflict of interest between big and small transport operators and cooperatives takes a toll on the agency of small sector stakeholders. The ability of big transport companies and cooperatives to easily comply and lobby the government for their interests vis-a-vis the PUVMP diminishes the agencies of traditional jeepney drivers and operators. Even within the informal transport sector, internal and external factors contribute to the persistence of heterogeneity and fragmentation of interest, minimizing their capacity to influence policymaking. The study revealed that most of the sector expresses either implicit or explicit support for jeepney modernization.

Institutional Constraints

Institutions, particularly the exclusion of traditional jeepney drivers and operators in the decision-making or policymaking process, the inability of the government to fully implement the PUVMP, and the role of international financial institutions likewise limit their agency. In the absence of consultation at the grassroots, the diversified focus of policymakers, the inclination of the government to not heed the concerns forwarded through transport strikes, and the minute representation granted to the sector in legislative deliberations compounded the constraints to the agencies of traditional jeepney drivers and operators. Further, the ineffective delivery of the program's provisions diminishes the agency of the traditional jeepney drivers and operators, especially since huge financial sums are required to participate in the modernization program imposed by the government.

Despite traditional jeepney drivers and operators still considering participation in transport strikes as a somewhat effective means of amplifying their voices, pressuring the government to take action, and presenting an alternative perspective on rehabilitation (to preserve the cultural relevance of jeepneys and sourcing materials locally), some, as well as the government, perceive that transport strikes are losing their power to influence due to the heterogeneous interests of traditional jeepney drivers and operators, and the reduced number of transport group members. Several interviewed policymakers stated that the program was already in place, and the current review of the program was a delaying tactic to placate the stakeholders. This indicates that the drivers and operators have limited collective agency, owing to the heterogeneity of the jeepney transport sector that adversely affects their coordination, as well as the power dynamics between the government and the stakeholders, especially since the decision-making power lies on the government.

Furthermore, at the national government level, this study likewise sees the effects of international financial institutions such as the International Monetary Fund and the World Bank on the kind of policies that the government imposes on its people, with public transport being focused on the study. With the conditionalities set by these financial institutions, the government is either incentivized or trapped in setting forth neoliberal policies in its quest to comply and continue to have the financial backing it needs to fund its projects, not just within the transport sector but beyond.

Key Findings

Based on all the results, the general direction of the data gathered leans more toward the traditional jeepney drivers and operators opposing the current implementation of the program. Data showed that while they concur with modernization that needs to happen within the transport sector of Cebu City, several reasons and constraints impede their compliance. However, despite the same sentiments expressed by the respondents, intersectoral challenges posed a great challenge as these problems limit their collective agencies. Responses of individual jeepney drivers and operators revealed that members of transport groups gave more insightful ideas and inputs in contrast to their non-member counterparts, providing a clearer picture of their current situation. This provides the idea that being a part of a transport group has a significant impact, not just on their agency of collective action but also on their perspectives regarding the modernization program. This gives them additional agency to not just limit their efforts on resisting the implementation of the JMP but also to provide proposals that secure their best interests in the sector.

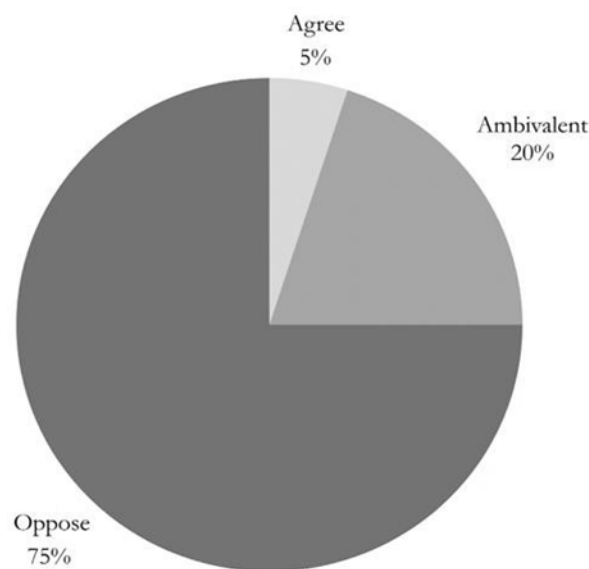


Figure 2. Pie chart showing the proportion of traditional jeepney drivers and operators in their position vis-a-vis the implementation of jeepney modernization program in Cebu City.

Despite their agency resisting the program, it is diminished due to the numerous aforementioned factors. However, membership in transport groups has produced more evident results, especially in mitigating the effects of the Jeepney Modernization Program on jeepney drivers and operators. Considering

the realities of the structural and institutional constraints underlying the conduct of transport strikes, the most effective agency available to jeepney drivers and operators, therefore, is their membership in transport groups.

Looking at the program, with its stipulation of consolidation, it can be deduced that the government is trying to establish and facilitate a cooperation scheme among traditional jeepney drivers and operators that can facilitate the consolidation not just of their units to help in attaining a more safe and efficient public transport system in Cebu City, Philippines. While this looks promising considering that traditional jeepney drivers and operators' agencies emanate from their collective efforts, the study shows that this is not the case in Cebu City, as structural and institutional constraints hinder traditional jeepney drivers and operators from having effective, cohesive, and all-encompassing transport groups and cooperatives. Unless these structural and institutional constraints are addressed adequately and simultaneously with the implementation of the consolidation of units as part of the Jeepney Modernization Program, it will be hard for the government to compel the stakeholders affected as it will ensure resistance from the informal sector for numerous varying reasons. With their power to influence the government, it is evident that big operators have an edge over small operators. Hence, to address the privatization of jeepney modernization, the government must delineate big operators from the private sector by assuming their role and becoming the entity that would rent out affordable units to jeepney drivers.

Based on the findings of the study, it can be ascertained that Mayer's (2014) theory of heterogeneous interests and Mosca's (1939) elite theory affect and apply in the local context of Cebu City, Philippines, with structural constraints predominating over institutional constraints in shaping the agencies of traditional jeepney drivers and operators in relation to the Jeepney Modernization Program. As put forth by Mayer, impediments in coordination and assurance bring forth fragmentation and heterogeneity. This principle is essential in the implementation of the PUVMP in Cebu City because unless both the transport groups as well as the government provide a just framework that ensures coordination and assurance of interests within the sector, the issue of fragmentation and heterogeneity will continue to persist, and the program in the City will become inequitable for stakeholders who are unable to easily comply. Likewise, Mosca's theory applies in Cebu City, where minimal stakeholder consultation and minimal participation in policymaking are evident in the implementation of the PUVMP. While the government itself and through its concerned agencies are more or less monopolizing its say in policymaking, many

of its policies are still swayed by the whims of the masses, especially the traditional jeepney drivers and operators.

Finally, the realities experienced by the traditional jeepney drivers and operators are manifestations of how government policies, no matter how good the intent might be, can be devastating to those stakeholders who lack the resources to comply. The PUVMP is seen as a positive step toward improving public transportation and reducing emissions. However, it can further marginalize the jeepney drivers if it lacks consultation and if neoliberal solutions are the primary considerations at the expense of the stakeholders.

Conclusion

The agencies of traditional jeepney drivers and operators are primarily manifested through transport strikes and the benefits they gain from joining transport groups. However, existing and enduring structures and institutions negatively affect the agencies of the above-mentioned stakeholders as it limits their capacity to influence the Jeepney Modernization Program in favor of their interests. These structural limitations include poverty, informality of the transport sector, fragmentation, power structure, skepticism about management, lack of interest, and the COVID-19 pandemic. Additionally, institutional constraints include the exclusion of traditional jeepney drivers and operators from crucial decision-making and/or policymaking processes, the government's inability to deliver the full provisions of the program, and the role of international financial institutions.

Structural constraints predominate over institutional constraints in shaping the agency of traditional jeepney drivers and operators. Consequently, the minimal influence of traditional jeepney drivers and operators in relation to the jeepney modernization program will persist despite their efforts. Thus, they must join transport groups as they have proved to offer benefits and avenues for manifesting collective agency. Likewise, transport groups should strive to practice transparency to encourage the participation of the drivers and operators.

When mechanisms and processes to achieve sustainability in the transport sector become exclusionary, governments are compelled to rethink a more just transition that responds to the needs of its most marginalized and grassroots sectors, which include the small jeepney drivers being displaced by aspirations of modernization. Environmental sustainability, consolidation to minimize competition, and safety of transport systems, among others, as stipulated in the PUVMP, while valid reasons, must not be the sole basis for the direction public

policy will take. Neoliberal policy schemes must not be considered as they inflict serious repercussions on traditional transport that, while informal, constitute the majority within the transport sector, with so many depending on them not just for their everyday living but for their affordable services to the public.

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